overawed' that she made no attempt to resist. The clear message was that anything other than a 'no' accompanied by violent resistance – no matter how dangerous – would be construed as a 'yes'.

Under the criminal law as it existed at the time, sexual intercourse with a woman constituted 'rape' when it was against her will or without her consent. Rape also included circumstances where intercourse took place with her consent where that consent was induced through fear of death or injury. The Supreme Court focused on this definition of rape, and observed that there was no evidence that Mathura consented under a fear of death or injury. Instead of ascertaining whether Mathura consented in the first place (as the high court did), the Supreme Court *assumed* that Mathura consented and worked backwards from that assumption. With that fundamentally different starting point, the court acquitted Ganpat.

Tukaram met with a similar fate. The court described Mathura's allegations against him as 'wholly unproved'. Citing inconsistencies in her story, the court proposed 'not to take the girl at her word'. After all, where was 'the assurance that her word is truthful in relation to what she now says about Tukaram'? Ganpat's and Tukaram's appeals were upheld, with Mathura's courageous quest for justice going in vain.

As it happened, the Supreme Court was engaged in the exercise of rehabilitating its image as a sentinel of human rights at the time, following its loss of face during the Emergency. Only a few months before the Mathura case, the court held in a celebrated judgement that a procedure established by law which derogates from the fundamental right to life under the Constitution must be 'fair, just and reasonable, not fanciful, oppressive or arbitrary'.[6] About a month before the judgement, the court held in another case that providing free legal aid to prisoners was the 'State's duty and not government charity'.[7] These lofty exhortations about protecting rights did not seem to extend to Mathura.

The Supreme Court's judgement in the Mathura case garnered little attention when it was first pronounced in September 1978. Almost exactly a year after the Supreme Court's judgement, four academics – three from the University of Delhi and one from the University of Pune – wrote an open